

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF CONSERVATIVE PARTY OF RUSSIA AND OTHERS v. RUSSIA

(Application no. 7602/06)

JUDGMENT

STRASBOURG

24 March 2020

This judgment is final but it may be subject to editorial revision.

In the case of Conservative Party of Russia and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Paulo Pinto de Albuquerque, *President,*
Helen Keller,
María Elósegui, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having deliberated in private on 3 March 2020,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application (no. 7602/06) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 17 February 2006 by the Conservative Party of Russia (*Konservativnaya partiya Rossii*) registered on 25 December 2001 in Moscow ("the applicant party") and two Russian nationals, Mr Yuriy Sergeyevich Denisov (the second applicant) and Mr Andrey Aleksandrovich Oborin (the third applicant), who were born in 1951 and 1952 respectively. The applicant party is represented before the Court by Ms N. Korolyova, the acting chairman. The second and third applicants are represented before the Court by Mr V. Shumskoy, a lawyer practising in Moscow.

2. The Russian Government ("the Government") were represented initially by Ms V. Milinchuk, the Representative of the Russian Federation to the European Court of Human Rights, and then by her successor in that office, Mr M. Galperin.

3. The applicants alleged, in particular, that the dissolution of the Conservative Party of Russia constituted a breach of Article 11 of the Convention.

4. On 9 May 2007 the Government were given notice of the application. The Government objected to the examination of the application by a Committee. Having considered the Government's objection, the Court rejects it.

THE FACTS

I. THE CIRCUMSTANCES OF THE CASE

5. The second and third applicants are members of the Secretariat of the applicant party. They live in Moscow.

6. On 15 January 1992 the Ministry of Justice formally registered the public association "Conservative Party of Russia". The declared aims of the association were "a democratic transformation of the country" and "building

of a democratic society based on the principles of pluralism, real sovereignty of the people and guaranteed individual rights".

7. On 30 September 2001 a general conference of the public association decided on its re-organisation into a political party by the same name.

8. On 25 December 2001 the applicant party was registered by the Ministry of Justice.

9. Following establishment of the Unified State Register of Legal Entities, on 15 January 2003 the information on the applicant party was entered into the Register.

10. In June 2004, the Ministry of Justice applied to the Basmanniy District Court of Moscow seeking dissolution of the applicant party in connection with gross and irreparable breaches of the Russian law. It relied in this regard on Article 61 § 2 of the Civil Code, section 25 § 3 of the Political Parties Act and section 25 § 2 of the Legal Entities Registration Act. The Ministry of Justice submitted that in 2001 the applicant party had submitted for registration fifty-three minutes of regional conferences concerning re-organisation of the public association into the political party. Of those, twenty-five documents contained untrue information, in particular:

> "– on the date of the conference concerning the re-organisation (Krasnodar, Belgorod, Voronezh, Ivanovo, Nizhny Novgorod, Ulyanovsk and Yaroslavl Regions);
>
> – on the election of managers of regional branches (Belgorod, Voronezh, Ivanovo, Lipetsk, Nizhny Novgorod, Ulyanovsk and Chelyabinsk Regions);
>
> – on the membership and election of individuals to the standing management body of the regional branch (Krasnodar, Belgorod, Voronezh, Ivanovo, Kostroma, Kirov, Lipetsk, Nizhny Novgorod, Ulyanovsk and Chelyabinsk Regions);
>
> – on the membership and election of individuals to the audit commission (Krasnodar, Belgorod, Voronezh, Ivanovo, Nizhny Novgorod, Ulyanovsk and Chelyabinsk Regions);
>
> – on the address (location) of the management body of the regional branch (Bashkortostan, Kabardino-Balkaria, Karachayevo-Cherkessiya, Tatarstan and Komi Republics, Arkhangelsk, Belgorod, Vologda, Voronezh, Ivanovo, Irkutsk, Kaluga, Kemerovo, Kostroma, Kirov, Kurgan, Leningrad, Nizhny Novgorod, Oryol, Penza, Sverdlovsk, Tver and Tula Regions, Moscow and St Petersburg);
>
> – on the number of members of regional branches (Kirov, Nizhny Novgorod and Ulyanovsk Regions);
>
> – on the number of persons who attended the conference (Krasnodar, Belgorod, Voronezh, Ivanovo, Kirov, Ulyanovsk and Yaroslavl Regions)."

11. The Ministry of Justice further submitted that three regional branches (in the Kemerovo and Leningrad Regions and in St Petersburg) had been dissolved by a judicial decision because of gross violations of legal requirements on the number of members and the procedure for election of the management body. Finally, the Ministry of Justice claimed that the applicant party had breached section 25 § 3 of the Political Parties

Act in that the management bodies and audit commission had not been elected by secret ballot.

12. The applicant party objected to the Ministry's claims. It argued that neither the regional justice departments nor the Ministry of Justice itself had uncovered any defects in the documents when taking the decision to register the party in 2001. In 2004 the Ministry had carried out an inspection of all regional branches of the party and found no major irregularities. The allegation that the elections had not been by secret ballot was unsubstantiated because the documents reflected the outcome, but not the procedure, of the election.

13. On 15 April 2005 the Basmanniy District Court of Moscow granted the Ministry's application. It recalled that section 25 § 3 of the Political Parties Act required a political party to have no fewer than ten thousand members in at least one half of Russian regions (that is, forty-five regions). The applicant party had submitted for registration minutes of re-organisation of fifty-three regional branches having a total membership of 10,686 persons. The District Court observed that an inspection by the Ministry had revealed that twenty-five minutes of regional conferences had contained untrue information as per the above-cited list (see paragraph 10 above). The District Court further noted that regional branches in the Kemerovo and Leningrad Regions and in St Petersburg had been dissolved by a judicial decision on account of gross violations of legal requirements of minimum membership and the procedure for election of management bodies. On the basis of those elements, the District Court reached the conclusion that the applicant party had submitted untrue information to the registration body and that at the date of its registration it had not had properly established regional branches in one half of Russian regions or a ten-thousand-strong membership. Thus, the applicant party did not meet the requirements for a political party within the meaning of section 3 § 2 of the Political Parties Act.

14. Furthermore, the District Court considered it established that the applicant party's management and audit bodies had not been elected by secret ballot, in breach of section 25 § 2 of the Political Parties Act. In the District Court's view, that omission amounted to a gross and irreparable violation of the law, because it put into doubt the legality of the management's decisions.

15. The District Court further stated that section 38 of the Political Parties Act did not limit the scope of the competent authorities' monitoring of the political parties' compliance with the law to their compliance with the provisions of the said Act. The Ministry of Justice was right to apply for the applicant party's dissolution with a reference to the Legal Entities Registration Act on the ground of the breaches committed at the moment of the party's registration. The court ordered that the applicant party be

dissolved because of gross and irreversible violations of the law committed at the time of its registration.

16. On 18 August 2005 the Moscow City Court, in a summary fashion, upheld the judgment of the Basmanniy District Court. It rejected the applicant party's arguments in the following terms:

> "The arguments to the effect that the justice departments have previously carried out inspections of compliance by the Conservative Party of Russia with the legislation and have not uncovered any violations, do not undermine the District Court's finding that violations were committed at the time of registration. Materials in the case-file prove the existence of such violations.
>
> The fact that the registration authority had no comments on the documents submitted for registration at the time of registration only indicates that these violations had not been revealed at that stage. It does not prevent the registration body from applying to a court with an application for dissolution of a legal entity if it discovered such violations at a later stage...
>
> The appeal court does not agree with the argument that the violations could [still] be remedied. The legal requirements concerning the minimum number of regional branches and party members should have been fulfilled [already] at the moment of registration of the political party.
>
> The arguments that the violations, which the [Ministry of Justice] referred to, were not proven are similar to the arguments reviewed by the first-instance court. These arguments are unsubstantiated and find no basis in the case materials."

II. RELEVANT DOMESTIC LAW

A. The Political Parties Act (no. 95-FZ of 11 July 2001, as in force at the material time)

17. A political party must have regional branches in more than one half of Russian regions. It must have no fewer than ten thousand members provided that each regional branch has no fewer than one hundred members (section 3 § 2).

18. Branches of political parties operate on a territorial basis. Branches of political parties may not be created in agencies of State authority and of local self-government, in the military forces, law enforcement and other State agencies as well as in State or non-State organisations (section 9 § 4). Political parties and their branches may not operate in agencies of State authority and of local self-government (except for legislative (representative) State and municipal bodies), in the military forces, law enforcement and other State agencies, in the secretariat of legislative (representative) State bodies and in State organisations. Political parties may not interfere with educational process within educational facilities (section 9 § 5).

19. The management bodies and audit commission of a political party must be elected by secret ballot (section 25 § 3).

20. A political party is the only type of a public association that has the right to propose candidates to be elected as members of the parliament or other elected representatives in State bodies (section 36 § 1).

21. The competent authorities monitor compliance of political parties and their regional and other structural branches with Russian laws, as well as the compatibility of political parties' activities with the regulations, aims and purposes set out in their articles of association. The authorities have the right to apply to a court for the suspension of the activities or the dissolution of a political party or its regional branch (section 38 § 1).

22. A political party may be dissolved by a decision of either its highest management body or the Supreme Court (section 41 § 1).

23. A political party may be dissolved by a decision of the Supreme Court in case of its failure:

- to comply with the requirements of section 9 §§ 4 and 5 of the Political Parties Act (section 41 § 3 (a));
- to rectify within the established time-limit the violations that constituted the ground for the suspension of its activity (section 41 § 3 (b));
- to take part in elections (section 41 § 3 (c));
- to have regional branches of at least 5000 members in more than half of Russian regions (section 41 § 3 (d))
- to meet the minimum membership requirement provided in section 3 § 2 (section 41 § 3 (e));
- to provide the competent authorities with information necessary for updating data in the Register of Legal Entities (section 41 § 3 (f)).

B. The Legal Entities Registration Act (no. 129-FZ of 8 August 2001)

24. The registration body may apply to a court with an application for dissolution of a legal entity if that entity has been registered with gross breaches of the law or other regulations, provided that such breaches are of irreparable nature, and also in the case of numerous serious breaches of laws or other normative acts on State registration of legal entities (section 25 § 2).

C. Civil Code

25. A legal entity may be dissolved by a court decision in case it was created with irreparable breaches of the law (Article 61 § 2 (2), as in force at the material time).

D. Code of Civil Procedure

26. The Supreme Court of Russia acts as a first instance court in respect of cases concerning suspension of activity or dissolution of political parties (Article 27 § 1 (4)).

E. Supreme Court

27. In its Ruling no. GKPI2005-40 of 19 January 2005 the Supreme Court held that only applications for dissolution of a political party on the grounds provided in section 41 § 3 of the Political Parties Act fell within its jurisdiction under Article 27 § 1 (4) of the Code of Civil Procedure. However, applications for dissolution of a political party on the grounds provided in section 25 § 2 of the Legal Entities Registration Act were to be submitted to a district court according to jurisdictional rules.

THE LAW

I. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

28. The applicants complained under Articles 6 and 11 of the Convention about unfairness of the proceedings concerning dissolution of the applicant party and a violation of their right to freedom of association. The Court, being the master of characterisation to be given in law to the facts of the case (see *Radomilja and Others v. Croatia* [GC], nos. 37685/10 and 22768/12, §§ 126-27, 20 March 2018), considers that the complaint falls to be examined under Article 11 of the Convention, which reads as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic association in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

A. The parties' submissions

1. The Government's submissions

29. The Government first averred that the applicants did not contest the facts as set out in the application of the Ministry of Justice for the applicant party's dissolution, although they considered the court decision on the application to be ungrounded and unfair. The Government contended, in line with the domestic courts' findings, that the applicant party had submitted to the State registration body untrue information on the reorganisation of its regional branches and that, therefore, on the date of its registration as a political party it did not conform to the applicable requirements, i.e. it did not have branches in half of the Russian regions and had fewer members than the required number of ten thousand. Furthermore, its election of the management bodies and audit commission had not taken place by secret ballot.

30. Accordingly, in the Government's view, the domestic courts' decisions were lawful and well-grounded, since the applicant party's breaches of the relevant legislation and regulation were of irreparable nature. They also argued that, should the applicant party continue its existence as a political party, this would lead to violation of third parties' rights. In particular, having been registered as a political party, it obtained a number of privileges, i.e. to register its candidates for elections, whereas other newly created parties that were found to be in breach of the relevant legislation were refused State registration.

31. They also submitted that the application for the applicant party dissolution was examined by a district court and not by the Supreme Court in accordance with the domestic law and procedure. Referring to the Supreme Court's ruling of 19 January 2005 (see paragraph 27 above), the Government argued that since the application for the applicant party's dissolution was made on the grounds provided in section 25 § 2 of the Legal Entities Registration Act, and not on any of the grounds provided in section 41 § 3 of the Political Parties Act, it fell within the jurisdiction of a district court. The Government referred to several decisions on dissolution of a political party adopted by various district courts in unrelated proceedings as examples of domestic judicial practice in this respect.

32. The Government also pointed out that in the case at hand the dissolution of the applicant party was not final and unconditional. A political party, dissolved due to a breach of the registration procedure, might be founded again and its documents resubmitted for State registration. Furthermore, even after the applicant party's dissolution its candidates could still participate in elections as either self-nominated candidates or as representatives of a different party.

33. In the Government's view, therefore, the dissolution of the applicant party was in accordance with the law, pursued a legitimate aim and was proportionate.

2. The applicants' submissions

34. Contrary to the Government's assertion, the applicants submitted that they did contest the facts as set out in the application of the Ministry of Justice for the applicant party's dissolution. They further argued that the decision on the applicant party's dissolution taken by a district court was unlawful since under Article 27 § 1 (4) of the Code of Civil Procedure (see paragraph 26 above) a decision on a party's dissolution may only be taken by the Supreme Court.

35. The applicants further argued that the domestic courts' findings of twenty-five minutes of regional conferences containing untrue information were groundless as no decisions on dissolution of the applicant party's regional branches had been taken by the courts, and the Ministry of Justice had never instituted proceedings with this aim. They further maintained that, even excluding the three regional branches (in the Kemerovo and Leningrad Regions and in St Petersburg) that had been dissolved, the applicant party still had 48 regional branches in more than half of the Russian regions, and the number of its members exceeded ten thousand.

36. The applicants also averred that the election of the applicant party's management bodies and audit commission had taken place by secret ballot in accordance with the applicable laws. The domestic courts' findings to the contrary had not been corroborated by evidence since the standard documents required for a party's registration did not contain information on the election procedure, whereas according to the applicant party's charter documents such election was to take place by secret ballot.

37. The applicants contested the Government's argument concerning the legitimate aim of the interference. They argued that political parties had no "privileges" in the domestic legal or political system. Likewise, they contested the Government's argument concerning the applicant party's dissolution not being "final and unconditional" as devoid of sense. They argued that dissolution of a political party was always final since this entailed its removal from the Unified State Register of Legal Entities. The possibility to apply again for registration was irrelevant since it would be subject to the same conditions.

38. The applicants also contested the Government's argument that even after the applicant party's dissolution its candidates could still participate in elections as either self-nominated candidates or as representatives of a different party. They referred in this regard to Section 36 § 1 of the Political Parties Act (see paragraph 20 above), which provided that a political party was the only type of association that could independently nominate

candidates for elections of members of the parliaments and to other electoral posts in the State bodies.

39. Overall, the applicants maintained their argument that the interference with their right of association was not in accordance with the law, did not pursue a legitimate aim and was disproportionate.

B. Admissibility

40. The Court notes that the application is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention. It further notes that it is not inadmissible on any other grounds. It must therefore be declared admissible.

C. Merits

1. General principles

41. The Court observes at the outset that, notwithstanding its autonomous role and particular sphere of application, Article 11 must also be considered in the light of Article 10. The protection of opinions and the freedom to express them is one of the objectives of the freedoms of assembly and association as enshrined in Article 11. That applies all the more in relation to political parties in view of their essential role in ensuring pluralism and the proper functioning of democracy (see *Partidul Comunistilor (Nepeceristi) and Ungureanu v. Romania*, no. 46626/99, § 44, ECHR 2005-I, and *Herri Batasuna and Batasuna v. Spain*, nos. 25803/04 and 25817/04, § 74, ECHR 2009).

42. Freedom of association is however not absolute and it must be accepted that where an association, through its activities or the intentions it has expressly or implicitly declared in its programme, jeopardises the State's institutions or the rights and freedoms of others, Article 11 does not deprive the State of the power to protect those institutions and persons. In determining whether a necessity within the meaning of paragraph 2 of these Convention provisions exists, the States have only a limited margin of appreciation, which goes hand in hand with rigorous European supervision embracing both the law and the decisions applying it, including those given by independent courts (see *Sidiropoulos and Others v. Greece*, 10 July 1998, § 40 *Reports of Judgments and Decisions* 1998-IV, and *Republican Party of Russia v. Russia*, no. 12976/07, § 76, 12 April 2011). That is especially so in relation to political parties in view of their essential role in "a democratic society" (see, for example, *United Communist Party of Turkey and Others v. Turkey*, 30 January 1998, §§ 25, 43 and 46, *Reports* 1998-I).

43. According to a well-established principle of the Court's case-law, there can be no democracy without pluralism. The Court considers one of

the principal characteristics of democracy to be the possibility it offers for debate through dialogue, without recourse to violence, of issues raised by various tides of political opinion, even when they are troubling or disturbing. The fact that their activities form part of a collective exercise of freedom of expression in itself entitles political parties to seek the protection of Articles 10 and 11 of the Convention (see *United Communist Party of Turkey and Others*, cited above, §§ 42 and 43, *Reports* 1998-I).

44. Moreover, it is well established in the Court's case-law that drastic measures, such as the dissolution of an entire political party, may only be taken in the most serious cases (see *Refah Partisi (the Welfare Party) and Others v. Turkey* [GC], nos. 41340/98 and 3 others, § 100, ECHR 2003-II; *United Communist Party of Turkey and Others*, cited above, § 46; and *Herri Batasuna and Batasuna*, cited above, § 78), which endanger political pluralism or fundamental democratic principles (*Party for a Democratic Society (DTP) and Others v. Turkey*, nos. 3840/10 and 6 others, § 101, 12 January 2016).

2. Application to the present case

(a) Whether there was an interference

45. It is not disputed between the parties that the dissolution of the applicant party amounted to an interference with the applicants' rights under Article 11 of the Convention.

(b) Whether the interference was lawful

46. The applicants argued that the interference with their rights under Article 11 of the Convention was unlawful because the decision on the applicant party dissolution was taken by a district court that lacked jurisdiction in the matter, as the case had to be examined by the Supreme Court.

47. The Court observes that, in the case at hand, in its decision on the applicant party dissolution the Basmanniy District Court of Moscow relied on provisions of Article 61 § 2 of the Civil Code, section 25 § 2 of the Legal Entities Registration Act and Sections 3 § 2 and 25 § 3 of the Political Parties Act. The Court is therefore satisfied that the interference had basis in the domestic law.

48. The Court further notes that in its Ruling no. GKPI2005-40 of 19 January 2005 (see paragraph 27 above) the Russian Supreme Court held that only applications for dissolution of a political party on the grounds provided in section 41 § 3 of the Political Parties Act fell within its jurisdiction under Article 27 § 1 (4) of the Code of Civil Procedure, whereas applications for dissolution of a political party on the grounds provided in section 25 § 2 of the Legal Entities Registration Act were to be submitted to a district court.

49. The Court is, therefore, prepared to accept that the Basmanniy District Court of Moscow was the competent court to examine the application for the applicant party dissolution, and that the interference was thus "prescribed by law".

(c) Whether the interference pursued a legitimate aim

50. The Government submitted that the rationale for the interference had been to ensure the accuracy of the information concerning the number of the applicant party's members and regional branches and its compliance with the domestic legislation so as to prevent its unlawful participation in elections.

51. The Court is prepared to accept that that the interference pursued the legitimate aim of protecting the rights of others.

(d) Whether the interference was "necessary in a democratic society"

52. The Court must further ascertain whether the applicant party's dissolution was proportionate to the legitimate aim advanced by the Government.

53. The Court observes that there was nothing in the applicant party's articles of association or programme to suggest that it was not a democratic party, nor was it ever claimed that it had resorted to illegal or undemocratic methods, encouraged the use of violence, aimed to undermine Russia's democratic and pluralist political system or pursued objectives that were racist or likely to destroy the rights and freedoms of others. The reason for its dissolution was its failure to comply with the requirements of minimum membership and regional representation, provided in section 3 § 2 of the Political Parties Act (see paragraph 17 above) and to conduct elections of the party's management and audit bodies by secret ballot provided in section 25 § 2 of the Political Parties Act (see paragraph 19 above).

54. The Court examined dissolution of a political party on account of its failure to comply with formal requirements to have minimum membership and regional branches in the majority of the Russian regions in *Republican Party of Russia*, cited above, §§ 109-30, where it found that it constituted a disproportionate interference with the applicant's Article 11 rights. Having regard to the material in its possession, the Court notes that the Government have not put forward any fact or argument capable of persuading it to reach a different conclusion in the present case.

55. As regards the applicant party's failure to conduct elections of the party's management and audit bodies by secret ballot, the Court notes that the applicants contested this finding of the domestic courts. The Court reiterates that, as a general rule, it is not its task to substitute its own assessment of the facts for that of the domestic courts and it is for the latter to establish the facts on the basis of the evidence before them (see, among

other authorities, *Klaas v. Germany*, 22 September 1993, § 29, Series A no. 269). Having examined the domestic decisions, the Court does not find reasons to disagree with their assessment as regards the applicant party's failure to conduct the elections in question by secret ballot.

56. The Court observes, however, that the applicant party, an all-Russian political party whose aims specifically included "a democratic transformation of the country" and "building of a democratic society based on the principles of pluralism, real sovereignty of the people and guaranteed individual rights" (see paragraph 6 above) and which was never accused of any attempts to undermine democracy or Russia's territorial integrity, was dissolved on the purely formal ground of not having complied with a procedure for election of its management and audit bodies. The Court considers that such a radical measure as dissolution on a formal ground, applied to a law-abiding political party such as the applicant party, cannot be considered "necessary in a democratic society" (see *Republican Party of Russia*, cited above, § 130).

57. In view of the foregoing, the Court finds the domestic courts did not adduce "relevant and sufficient" reasons to justify the interference with the applicants' right to freedom of association. The applicant party's dissolution for failure to comply with the requirements of minimum membership and regional representation and to conduct elections of the party's management and audit bodies by secret ballot was disproportionate to the legitimate aim cited by the Government. There has accordingly been a violation of Article 11 of the Convention.

II. APPLICATION OF ARTICLE 41 OF THE CONVENTION

58. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

A. Damage

59. The applicants claimed 10,000,000 euros (EUR) in respect of non-pecuniary damage caused by the violation of the right to association which deprived them of the possibility to participate in Russian political life.

60. The Government made no comments concerning the applicants' claims for just satisfaction.

61. The Court considers that the applicants must have sustained damage on account of the applicant party's dissolution and ensuing impossibility to participate in the political life. Having regard to the materials in its

possession, and making its assessment on an equitable basis, it awards the applicants EUR 10,000 jointly in respect of non-pecuniary damage.

B. Costs and expenses

62. The applicants made no claim relating to costs and expenses. Accordingly, the Court makes no award under this head.

C. Default interest

63. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the application admissible;

2. *Holds* that there has been a violation of Article 11 of the Convention;

3. *Holds*
   (a) that the respondent State is to pay the applicants jointly, within three months, EUR 10,000 (ten thousand euros), to be converted into the currency of the respondent State at the rate applicable at the date of settlement, on account of non-pecuniary damage;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amount at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

4. *Dismisses* the remainder of the applicants' claim for just satisfaction.

Done in English, and notified in writing on 24 March 2020, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova	Paulo Pinto de Albuquerque
Deputy Registrar	President